

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE SHAHID BILAL HASSAN
MR. JUSTICE SHAKEEL AHMAD

C.P.L.A. No. 1086/2019

[On appeal against judgment dated 31.12.2018 passed in C.R.No.110-D of 2020 by Islamabad High Court, Islamabad]

Nadeem Akhtar (deceased) through LRs. & Others

...Petitioner(s)

Versus

Manzoor Ahmad (deceased) through LRs. & Others

...Respondent(s)

For the Petitioner(s): : Mr. Qaiser Imran, ASC

For the Respondent(s): : Mr. Zulfiqar Ali Abbasi, ASC
(for LRs. of respondent No.1)

Nemo for LRs. of respondent No.2, 33
and other respondents

On Court's Notice : Mirza Muhammad Usman, State
Counsel
Ali Javed, Tehsildar & Saghir Patwari

Date of Hearing : 08.04.2026

JUDGEMENT

SHAHID BILAL HASSAN, J- Brief facts germane to the filing of the instant petition are as such that Manzoor Ahmed (since deceased), predecessor of the respondents, instituted a suit for declaration and permanent injunction before the Civil Court, Islamabad, claiming ownership/co-sharer-ship in the suit land fully detailed in the plaint. He asserted that various transfers and mutations, effected by the defendants, were illegal, ineffective against his title, and had unlawfully diminished his lawful share.

The foundation of the respondent's/plaintiff's claim rested upon entries contained in the *Misal Haqiat* of 1956-57, according to which he was recorded owner/co-sharer. It was pleaded that subsequent alterations/corrections in the revenue record wrongly reduced his share and omitted his ownership from certain Khasra numbers, whereafter portions of the land were transferred in favour of different defendants and their predecessors.

After recording evidence, the learned Trial Court decreed the suit vide judgment and decree dated 27.03.2006. Against the said judgment, appeals were preferred before the District Judge, Islamabad, including one by the present petitioners and another by Aurangzeb Akhtar and others. Both appeals were heard together and dismissed by the learned Additional District Judge, Islamabad, vide judgment dated 05.11.2009. Thereafter, the aggrieved parties filed Civil Revision No.110-D/2010 before the Islamabad High Court, which too was dismissed on 31.12.2018. Hence, the present petition before this Court.

2. Learned counsel for the petitioners contended that the suit was hopelessly barred by limitation, inasmuch as the challenge was directed against long-standing revenue entries which had remained intact for decades. It was argued that the jurisdiction of the Civil Court stood expressly barred under section 172 of the West Pakistan Land Revenue Act, 1967, particularly where the substance of the relief sought was correction of entries in the record-of-rights and mutations register. It was further submitted that rights of third parties had, over time, been bona fide created through subsequent transfers and possession, and such settled rights could not lawfully be unsettled after prolonged inaction on the part of the respondent(s).

3. Learned counsel for the respondents supported the impugned judgments and argued that the respondent(s)/plaintiff(s) had approached the Civil Court not for a mere clerical correction of entries but for vindication of substantive proprietary rights adversely affected by erroneous revenue record. It was submitted that revenue entries neither create nor extinguish title, and where such entries prejudice ownership rights, the Civil Court retains jurisdiction to grant declaratory relief under section 42 of the Specific Relief Act, 1877.

4. We have heard learned counsel for the parties at considerable length and examined the record with their able assistance.

5. From the submissions advanced at the Bar, the following questions arise for our consideration: (i) whether the suit challenging long-standing revenue entries was barred by limitation; (ii) whether the Civil Court lacked jurisdiction in view of section 172 of the West Pakistan Land Revenue Act, 1967; and (iii) whether

settled and long-standing entries could be disturbed where third-party rights had bona fide intervened.

6. As to limitation, the law is settled that unexplained delay in challenging mutations or revenue entries renders the claim legally untenable. In Muhammad Miskeen and others v. Noor Muhammad and others (2011 SCMR 808), this Court held that where a party remained silent for 53 years, the suit was hopelessly barred by time. Likewise, in Muhammad Hussain and others v. Muhammad Shafi and others (2008 SCMR 230), a challenge after 47 years was declined. In Ghulam Haider and others v. Wali Muhammad and others (2008 SCMR 1425), a suit instituted after nineteen years was held time-barred. The philosophy underlying limitation was succinctly explained in Atta Muhammad v. Maula Bakhsh (2007 SCMR 1446), wherein it was observed that statutes of limitation are statutes of peace and repose, and stale claims cannot be permitted to disturb settled affairs. In the present case, the plaintiff founded his claim upon entries of 1956-57 and sought to unsettle subsequent entries after prolonged inaction. Such dormant claims could not have been entertained by the courts below.

7. We next advert to the question of jurisdiction of the Civil Court and it would be advantageous to reproduce the relevant provisions of Section 172 of the West Pakistan Land Revenue Act, 1967, which provide as under:

172. Exclusion of jurisdiction of Civil Courts in matters within the jurisdiction of Revenue Officers.— (1) Except as otherwise provided by this Act, no Civil Court shall have jurisdiction in any matter which Government, the Board of Revenue, or any Revenue Officer, is empowered by this Act to dispose of, or take cognizance of the manner in which Government, the Board of Revenue, or any Revenue Officer exercises any powers vested in it or him by or under this Act. (2) Without prejudice to the generality of the provisions of sub-section (1), a Civil Court shall not exercise jurisdiction over any of the following matters, namely:—

- (i)
- (ii)
- (iii)
- (iv)
- (v)
- (vi)
- (vii) the correction of any entry in a record-of-rights, periodical record or register of mutations;

8. In view of the above legal position, In Muhammad Yousaf and 3 others v. Khan Bahadur through Legal Heirs (1992 SCMR 2334), it was authoritatively held that section 172 of the West Pakistan

Land Revenue Act, 1967 bars the jurisdiction of Civil Courts in respect of matters which the statute has expressly entrusted to the exclusive domain of Revenue Officers, particularly those enumerated in subsection (2). Likewise, in Rasta Mal Khan and others v. Nabi Sarwar Khan and others (1996 SCMR 78), this Court explained the true scope of the provision by holding that while a Civil Court may intervene where substantive title or proprietary rights independent of revenue entries are directly in issue, the exclusion of jurisdiction squarely applies where the controversy essentially pertains to correction, alteration or cancellation of entries made in the record-of-rights, periodical record or register of mutations. The distinction, therefore, is between a genuine dispute of title and a challenge directed merely against fiscal entries.

In the present case, the plaint, when read as a whole, leaves no doubt that the foundation, substance and dominant object of the suit was not adjudication of an independent question of title, but the undoing of subsequent mutations and restoration of earlier entries allegedly recorded in *Misal Haqiat* of 1956-57. The grievance projected by the plaintiff was that later revenue record had diminished his share and required correction. Even the declaratory relief claimed was merely ancillary and consequential to the principal prayer seeking rectification of entries. It is settled that in determining jurisdiction, the Court must look to the real nature of the controversy rather than the drafting ingenuity of the plaint or the nomenclature of relief claimed. A party cannot, by couching a barred claim in the language of declaration and injunction, confer jurisdiction upon a Civil Court where the statute expressly excludes it.

Section 172(2)(vii) specifically bars Civil Court's jurisdiction regarding "*the correction of any entry in a record-of-rights, periodical record or register of mutations.*" Where the legislature has spoken in clear and unambiguous terms, the Court must give full effect to such command. To permit suits of the present nature before Civil Courts would render the statutory scheme nugatory, defeat the special forum created under the Act, and encourage collateral challenges to revenue administration through ordinary civil proceedings. Consequently, as the real and substantial relief sought by the plaintiff was rectification of revenue entries

simpliciter, the suit was clearly barred by section 172 of the Act and was not maintainable before the Civil Court.

9. The third and equally significant aspect pertains to the impermissibility of unsettling long-standing revenue entries after third-party rights have bona fide intervened. It is a settled principle of law that revenue record, though primarily maintained for fiscal purposes, constitutes the foundation upon which transactions relating to agricultural land are ordinarily undertaken, and members of the public are entitled to arrange their affairs on the faith of entries appearing therein. Once such entries remain intact and unquestioned for a considerable length of time, a presumption of regularity and correctness attaches to them, and the law leans strongly in favour of finality rather than perpetual uncertainty.

In Waris Khan and 18 others v. Col. Humayun Shah and 41 others (PLD 1994 SC 336), this Court held that where entries are of great antiquity, considerations of laches, limitation, acquiescence and even prescriptive rights assume central importance. The rationale is obvious: stale claims ought not to be permitted to reopen matters long treated as settled, particularly where possession and ownership arrangements have crystallized over time. Similarly, in Mst. Grana through legal heirs v. Sahib Kamala Bibi (PLD 2014 SC 167), it was reiterated that where a claimant sleeps over his alleged rights and allows others to deal with the property openly and for long periods, the law of limitation acquires decisive significance, especially once third-party interests have come into existence.

Likewise, in Abdul Ahad and others v. Roshan Din and others (PLD 1979 SC 890), it was held that once a mutation is sanctioned and subsequently incorporated into the Jamabandi, the Jamabandi carries a presumption of truth and regularity. Such entries cannot be brushed aside on mere assertions or belated allegations unsupported by cogent, confidence-inspiring evidence. The burden to dislodge this presumption is heavy and becomes even more onerous where entries have remained unquestioned for decades.

In the present case, the impugned entries were not isolated paper transactions; they formed the basis of subsequent transfers, possession, and proprietary arrangements in favour of several persons who acquired rights on the faith of the prevailing record. Those parties were entitled to assume that the revenue record,

having stood unchallenged for years, correctly reflected the legal position. To unsettle such accrued rights after decades would not only prejudice bona fide transferees, but would also strike at the certainty and security which the law seeks to preserve in land transactions. Equity aids the vigilant, not those who slumber over their rights. Therefore, both on principle and authority, the long-standing entries in the present matter ought not to have been disturbed.

10. The courts below, failed to properly appreciate the legal consequences flowing from limitation, the statutory bar of jurisdiction, and the sanctity attached to long-standing revenue entries upon which third-party rights had come into existence. The High Court, while exercising revisional jurisdiction, undertook an extensive reappraisal of the evidence and factual matrix; however, in doing so, it overlooked the foundational legal question regarding the maintainability of the suit in view of section 172 of the West Pakistan Land Revenue Act, 1967. Once jurisdiction itself was in serious doubt, a re-examination of evidence on merits could not cure the inherent defect. The impugned judgments, therefore, cannot be sustained.

11. For what has been discussed above, this petition is converted into an appeal and the same is allowed. The judgments and decrees passed by the learned courts below are set aside, and the suit instituted by the respondent(s) stands dismissed; however, the respondent(s), in view of above observations, would be at liberty to approach the Revenue hierarchy to get their grievance redressed, if so advised and desired. No order as to costs.

JUDGE

JUDGE

Islamabad the
08th of April, 2026
'APPROVED FOR REPORTING'
M.A. HASSAN